

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979, read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal No:
CA/HCC/0049/2026

Rajapaksha Mudiyanse Wijekumar
Banda

High Court of Ampara
Case No. HC/AMP/2373/2024

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Neranjana Jayasinghe with Randunu Heellage, Pravindika Kularatne and Rangana Warnasinghe for the Appellant. Anoo De Siva, DSG for the Respondent.**

ARGUED ON : **09/07/2026**

DECIDED ON : **25/08/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General under Section 365 (b) 2 (b) of the Penal Code for committing grave sexual abuse on Rajapaksha Mudiyansele Yasintha Dulmini between 01.12.2020 to 28.02.2021.

The trial commenced before the High Court Judge of Ampara and the prosecution had led six witnesses and marked productions P1- P2 and closed the case. The Learned High Court Judge, having been satisfied that the evidence presented by the prosecution warrants a case to answer, called for the defence and explained the rights of the accused.

The Appellant had opted to make a dock statement, and closed his case. Having considered the evidence presented by both parties, the Learned High

Court Judge had convicted the Appellant as charged and sentenced him to 16 years rigorous imprisonment with a fine of Rs.20,000/-. In default a six-month simple imprisonment was imposed.

Additionally, a compensation of Rs. 200,000/- was imposed with a default sentence of 12 months simple imprisonment.

The background of the case *albeit* briefly is as follows:

In this case the prosecutrix was about 13 years old when she faced this bitter ordeal. As her parents were separated, she had lived with her father. Since her father had married another lady, she was looked after by her grandparents. The Appellant is her grandfather. The Appellant had started to abuse her in his house. Her grandmother had warned to be careful with her grandfather. The Appellant had started to abuse her since 2022 after her puberty. He had performed intercrural sex and once the Appellant had also penetrated his male organ into her vagina. Each time she had observed that the Appellant had whitish discharge. Once the abuse was witnessed by her grandmother and she had attempted to assault the Appellant with a mamoty.

PW3, Chamila is the mother of the victim. When she was informed about the abuse performed on her daughter, she had telephoned the Dehiyathakandiya Police. The police had gone to the Appellant's house and brought the victim to the police. PW3 came to the police upon the victim being brought to the police.

PW2, Maduwanthi, the aunt of the victim also narrated the same in her evidence.

PW13, JMO Perera had examined the victim on 08.08.2022. In her short history to the JMO the victim had told that the Appellant had performed intercrural sex on her several times against her will. She also had said that the Appellant had performed sexual intercourse as well.

The Appellant had raised the following grounds of appeal:

1. The evidence of the prosecution witnesses failed the test of credibility.
2. The Learned High Court Judge had rejected the dock statement on unreasonable grounds.

As the appeal grounds raised by the Appellant are interconnected, all grounds will be considered together hereinafter.

In criminal cases, the prosecution bears the weight of proving the defendant's guilt to the jury and to sufficiently explain why a conviction is justified. "Beyond a reasonable doubt" refers to the legal principle that the evidence and arguments brought forward by the prosecution must be so strong and convincing that any rational person could accept the guilt of the defendant as fact. Such a standard would ensure no uncertainties exist when a defendant is convicted.

In the case of **State of Andra Pradesh v. Gangula Satya Vani Murthy** AIR 1997 SC 1588, it was held that:

"...the courts are expected to show great responsibility while trying an accused on charges of rape. They must deal with such cases with utmost sensitivity."

In the case of **State of Punjab v. Gurmit Singh & Others** (1996) 2 SCC 384; AIR 1996 SC 1393.

"Rape is not merely a physical assault - it is often destructive of the whole personality of the victim. A murderer destroys the physical body of his victim, a rapist degrades the very soul of the helpless female. The Courts, therefore, shoulder a great responsibility while trying an accused on charges of rape. They must deal with such cases with utmost sensitivity."

The testimony of the prosecutrix must be appreciated in the background of the entire case and the trial court must be alive to its responsibility and be sensitive while dealing with cases involving sexual molestations."

The prosecutrix in her evidence stated that she was abused by the Appellant and raped her once. According to the JMO there is no medical evidence of acute or chronic penetration. He opined that the act described by the victim cannot be confirmed or excluded by medical examination.

The learned Counsel for the Appellant submitted that he is only contesting the sentence imposed on the Appellant in this case.

The learned Deputy Solicitor General in keeping with the highest tradition of the Attorney General's Department informed Court that she will not object if this Court reconsiders the sentence imposed by the learned High Court Judge.

In criminal trials, sentencing takes place subsequent to a defendant being found guilty or after the defendant pleads guilty. The judge would determine the penalty after a dedicated sentencing hearing. This is done by a thorough assessment of the severity of the crime, the criminal history of the defendant, any aggravating or mitigating circumstances and victim impact statements, in order to issue the appropriate sentence, such as incarceration, probation or fines.

In the case of **Bachan Singh v. State of Punjab**, (1980) 2 SCC 684 it was held:

"...this Court had held that this sentencing discretion is to be exercised judicially on well-recognised principles, after balancing all the aggravating and mitigating circumstances of the crime. By "well-recognised principles" the Court obviously meant the principles crystallised by judicial decisions illustrating as to what were regarded as aggravating or mitigating circumstances in those cases.

The discretion is liable to be corrected by superior courts. The exercise of judicial discretion on well-recognized principles is, in the final analysis, the safest possible safeguard for the accused.”

In the case of **Soman v. State of Kerala**, (2013) 11 SCC 382 it was held:

“In a proportionality analysis, it is necessary to assess the seriousness of an offence in order to determine the commensurate punishment for the offender. The seriousness of an offence depends, apart from other things, also upon its harmfulness. The question is whether the consequences of the offence can be taken as the measure for determining its harmfulness? In addition, quite apart from the seriousness of the offence, can the consequences of an offence be a legitimate aggravating (as opposed to mitigating) factor while awarding a sentence. Thus, to understand the relevance of consequences of criminal conduct from a Sentencing standpoint, one must examine: (1) whether such consequences enhanced the harmfulness of the offence; and (2) whether they are an aggravating factor that need to be taken into account by the courts while deciding on the sentence.”

The Learned Counsel for the Appellant submitted to this court that the Appellant is 59 years old and a farmer by profession. He is married and has five children. He has no previous or pending matters reported in any court of Sri Lanka.

Considering the submissions made by the learned Counsel with regard to the sentence imposed on the Appellant, I deduct six years from the sentence imposed on the charge. Now he has to serve 10 years rigorous imprisonment.

The fine imposed and the compensation ordered will remain same with the default sentence imposed.

Considering all the circumstances, I back date the sentence effective from the date of conviction, namely 13.11.2025.

Subject to the above variation in the sentence, the Appeal is dismissed.

The Registrar is directed to send this judgment to the High Court of Ampara along with the original case record.

JUDEG OF COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDEG OF COURT OF APPEAL